

TENTATIVE RULINGS FOR July 23, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department R-14 at SScott@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

PLEASE REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling the department at 909-285-3717. If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

BABATKIS

V.

CITY OF RANCHO CUCAMONGA, ET AL.

CIVRS2510840

FACTUAL AND/OR PROCEDURAL BACKGROUND

The Complaint and Allegations

This is a premises liability action. On December 18, 2025, Plaintiff James Babatkis filed his Complaint against Defendants City of Rancho Cucamonga (City), County of San Bernardino (County), and two later dismissed parties, alleging one cause of action for premises liability (dangerous condition of public property).

On December 31, 2024, Defendants negligently or recklessly maintained, managed, operated, controlled, and safeguarded the premises at 9500 Etiwanda Avenue, Rancho Cucamonga (premises), such that water or similar substance was allowed to exist or accumulate causing the area to be slippery and constituting a dangerous condition. Plaintiff was walking in the showers within the premises while wearing defective footwear provided by the facility when he slipped on water or other liquid causing him to fall and sustain injuries. County answered.

Motion for Judgment on the Pleadings (MJOP)

County moves for judgment on the pleadings. Plaintiff opposes and County replies.

DISCUSSION

Law Re Judgment on the Pleadings

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. (*See* Code Civ. Proc., § 438, subds. (b)(1) & (f); *Templo v. State of Calif.* (2018) 24 Cal.App.5th 730, 735 (*Templo*) [“motion for judgment on the pleadings is equivalent to a demurrer” (internal quotes omitted)].) The motion tests the sufficiency of the complaint to state a cause of action. (*Wise v. Pacific Gas & Elec. Co.* (2005) 132 Cal.App.4th 725, 738 (*Wise*).)

If the moving party is the defendant, the motion is limited to the grounds that the court has no jurisdiction of the subject of the cause of action alleged in the complaint or the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B)(i)&(ii); *Templo, supra*, 24 Cal.App.5th at p. 735.) The motion may be made as to the entire complaint or to any of the causes of action therein or to the entire answer or one or more affirmative defenses in the answer. (Code Civ. Proc., § 438, subd. (c)(2)(A)&(B).)

“Except as provided in the statute governing motions for judgment on the pleadings, Code of Civil Procedure section 438, the rules governing demurrers apply.” (*Alameda Cnty. Waste Mgmt. Auth. v. Waste Connections US, Inc.* (2021) 67 Cal.App.5th 1162, 1174 (*Alameda Cnty.*).) In evaluating the sufficiency of the challenged pleading, the court accepts all material facts pleaded and those that arise by reasonable implication, but not conclusions of fact or law. (*Id.*, at p. 1174.)

The grounds for the motion shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 438, subd. (d).)

“The court must assume the truth of all factual allegations in the complaint, along with matters subject to judicial notice.” (*Wise, supra*, 132 Cal.App.4th at p. 738; *Alameda Cnty., supra*, 67 Cal.App.5th at p. 1174.)

“Leave to amend ‘is properly denied if the facts and nature of plaintiffs’ claims are clear and under the substantive law, no liability exists.’ [Citation.]” (*Templo, supra*, 24 Cal.App.5th at p. 735.)

Timeliness

Code of Civil Procedure section 438, subdivision (e), specifies that “[n]o motion may be made pursuant to this section if a pretrial conference order has been entered pursuant to Section 575, or within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits.”

Regarding the first timing limitation, Section 575 does not define a pretrial conference order. (Code Civ. Proc., § 575.) But one case construing prior court rule 210(c) explains that at pretrial conferences, counsel submit a written statement of the factual and legal contentions to be made as to the issues remaining in dispute which are then carried over into the pretrial conference order. (*Pulse v. Hill* (1963) 217 Cal.App.2d 301, 304.) “The principal purposes of pretrial are to find out what the lawsuit is about, to simplify and define the issues to be litigated, and to determine how the trial may proceed most expeditiously. It is also to give notice of matters not necessarily revealed by the pleadings where such matters may be issues in the case.” (*Id.*, at p. 304.) Under this definition, there does not appear to have been any pretrial conference order issued in this case.

Regarding the second limitation, on June 25, 2026, the court issued an initial trial setting conference order that set a further trial setting conference for July 23, 2026. Thus, no trial date

has been set in this action. As such, the second timing limitation does not apply. County's motion is made timely.

Request for Judicial Notice

"Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter." (*Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 145.)

Where the MJOP is based on matters the court *may* judicially notice (under Evidence Code sections 452 or 453), such matters shall be specified in the notice of motion or supporting points and authorities, except as the court may otherwise permit. (Code Civ. Proc., § 438, subd. (d).) "On a motion for judgment on the pleadings, a court may take judicial notice of something that cannot reasonably be controverted, even if it negates an express allegation of the pleading." (*Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549 (*Evans*), disapproved in part on other grounds by *Black Sky Capital, LLC v. Cobb* (2019) 7 Cal.5th 156, 165.)

County seeks judicial notice that on the date of the subject incident, 12/31/24, Plaintiff was an inmate at West Valley Detention Center (WVDC). County also seeks judicial notice that WVDC is located at 9500 Etiwanda Avenue in Rancho Cucamonga, which is the same address of the premises where the alleged injury occurred. County's RJN is supported by five San Bernardino County Superior Court minute orders and a County Sheriff's Department website printout showing 9500 Etiwanda as WVDC's address. (County's RJN, Exhs. 1-6.)

The court may judicially notice records of any court of this state. (Evid. Code, § 452, subd. (d).) Such notice includes court orders and the court may notice the truth of their contents.

“[T]he truth of a document's contents will not be considered unless it is a judgment, statement of decision, or order.” (*C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1103.)

Also, the court may judicially notice facts that are of such common knowledge within the territorial jurisdiction of the court that they cannot reasonably be the subject of dispute. (Evid. Code, § 452, subd. (g).) Here, it is common knowledge not reasonably disputed that 9500 Etiwanda Avenue in Rancho Cucamonga houses WVDC, which is within the territorial reach of the Superior Court of San Bernardino County.

The Court GRANTS County’s judicial notice request in its entirety.

Analysis of Merits

County argues it is immune, expressly, from liability for Plaintiff’s claims under Government Code section 844.6, subdivision (a)(2). Because of such immunity, the Complaint fails to state facts sufficient to constitute a cause of action against the County. Furthermore, amendment would be futile because the defect cannot be cured as a matter of law.

Section 844.6, subdivision (a), provides: “[n]otwithstanding any other provision of this part, except as provided in this section and in Sections 814, 814.2, 845.4, and 845.6, or in Title 2.1 (commencing with Section 3500) of Part 3 of the Penal Code, a public entity is not liable for: (1) An injury proximately caused by any prisoner. (2) An injury to any prisoner.” (Gov. Code, § 844.6, subd. (a)(1)-(2).)¹ “Section 844.6, subdivision (a)(2) establishes the State’s immunity to liability for injuries to prisoners.” (*Collins v. Cnty. of San Diego* (2021) 60 Cal.App.5th 1035, 1055.)

¹ As described next, none of the exceptions identified in Section 844.6, subdivision (a), appears to apply here. Section 814 provides that Part 2 (where these sections are located) does not affect liability based on contract or the right to obtain relief other than money or damages against a public entity or public employee. (Gov. Code, § 814.) Here, Plaintiff’s Complaint does not allege a contract or relief aside from compensatory damages. Therefore, Section 814 does not appear to apply here.

Section 844.6, subdivision (c), specifically bars prisoner claims arising from allegedly dangerous conditions of public property. (Gov. Code, § 844.6, subd. (c).) A prisoner includes an inmate of a prison, jail, or penal or correctional facility. (Gov. Code, § 844.) When interpreting the word “prisoner” as used in Section 844.6, the “focus has always been on whether the person was lawfully confined in a jail, prison or other similar penal facility.” (*Reed v. Cnty. of Santa Cruz* (1995) 37 Cal.App.4th 1274, 1277 (*Reed*)). In refining the “prisoner” definition, the confinement must be for a penological or correctional objective or the person must be incarcerated as part of the penal processes. (*Id.*, at p. 1277.)

In *Reed*, the plaintiff sued the county for personal injuries received when she was assaulted by a man confined with her in a holding room at the county jail while both were being booked on criminal charges. (*Reed, supra*, 37 Cal.App.4th at p. 1276.) In finding that plaintiff was lawfully confined as part of the penal process at the time of the alleged assault, the court pointed to undisputed facts that plaintiff was arrested under a warrant, taken to jail and confined in a jail holding room. (*Id.*, at p. 1277.)

Here, County’s judicially noticeable minute orders show that between December 20, 2024, and February 10, 2026, Plaintiff was labeled as “present in custody” in the minute orders. (County’s RJN, Exhs. 1-5.) On 2/10/26, the minute order reflects that Plaintiff was released

Section 814.2 provides that Part 2 does not impliedly repeal workers’ compensation provisions in Labor Code Divisions 4 and 4.5. (Gov. Code, § 814.2.) Because Plaintiff’s allegations do not encompass workers’ compensation, this section is inapplicable.

Section 845.4 concerns public entity or public employee interference with a prisoner’s right to judicial determination or review of the legality of his or her confinement. (Gov. Code, § 845.4.) Plaintiff’s Complaint does not allege that he is challenging any confinement, rendering this section inapplicable.

Section 845.6 pertains to failure to obtain medical care for prisoners by a public entity or public employee. (Gov. Code, § 845.6.) Plaintiff does not allege a failure to obtain medical care, so this section likewise does not apply here.

Penal Code, Part 3, Title 2.1 concerns biomedical and behavioral research, which is not alleged in Plaintiff’s Complaint and therefore inapplicable here.

from custody on that date. (County's RJN, Exh. 5.) The alleged incident occurred on 12/31/24 at 9500 Etiwanda Avenue which is the judicially noticed location of WVDC. Thus, based on the minute orders and address of WVDC, the court can accept the reasonable implication that Plaintiff was in custody as an inmate or prisoner as part of the penal process at the time of the alleged injury.² Therefore, under Government Code section 844.6, subdivisions (a)(2) and (c), County is immune from liability for Plaintiff's premises liability tort claim.

Leave to amend should be denied where no liability exists under substantive law or where amendment would be futile. (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 828; *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230-231; *Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 489.) As County points out persuasively, leave to amend would be futile because the pleading defect here is based on statutory immunity, not insufficient factual pleading.

In opposition, Plaintiff first argues that Government Code sections 820 and 815.2 provide the necessary statutory basis for liability. Section 820, subdivision (a), states that except as otherwise provided by statute, a public employee is liable for injury caused by his act or omission to the same extent as a private person. (Gov. Code, § 820, subd. (a).) However, the County Defendant and moving party here are not a public employee or private person, so this section does not help Plaintiff.

Government Code section 815.2, subdivision (a), provides that a public entity is liable for injury proximately caused by an act or omission of the public entity's employee within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative. However, Plaintiff does not

² Notably, in his opposition, Plaintiff concedes that the alleged incident occurred while he was wearing footwear provided by the County Jail. (Plaintiff's Oppo., 2:5-7.)

address the applicability, as discussed above, of Government Code section 844.6. Both sections 815.2 and 844.6 are found in Title 1, Part 2 of the Government Code. Section 844.6, subdivision (a), starts with the phrase “[n]otwithstanding any other provision of this part” (which would include Section 815.2) and concludes by stating a public entity is not liable for injuries proximately caused by any prisoner or to any prisoner. (Gov. Code, § 844.6, subd. (a)(1)-(2).) Therefore, Plaintiff’s argument to ground statutory liability in Section 815.2 is not persuasive.

Next, Plaintiff relies on Government Code section 835, which begins with this language: “[e]xcept as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury....” Plaintiff overlooks the first clause “except as provided by statute.” Specifically, Government Code section 844.6, subdivision (c), is a statute that sets forth an *exception* for public entity liability for an injury resulting from the dangerous condition of public property under Chapter 2 (commencing with Section 830); the exception is for an injury to a prisoner. Thus, Section 835 does not advance Plaintiff’s cause.

With respect to interpreting and applying Section 844.6’s immunity standard, Plaintiff urges a nuanced analysis, relying on *Collins, supra*, 60 Cal.App.5th 1035, arguing the court rejected a mechanical application of immunity because the nature and context of the negligent act must be examined. Plaintiff did not supply a pinpoint cite for *Collins* that advances this proposition; a search for the word “nature” in *Collins* did not yield any results. Thus, Plaintiff failed to supply any legal authority for this argument. “We need not consider an argument for which no authority is furnished.” (*Dabney v. Dabney* (2002) 104 Cal.App.4th 379, 384.) The remainder of Plaintiff’s opposition arguments likewise lack supporting legal authority and do not merit consideration.

Regarding leave to amend, Plaintiff merely states he is prepared to provide more detailed and specific factual allegations to reinforce the Complaint and its cause of action. Because County's immunity argument has merit, it is unclear how Plaintiff could amend his pleading to circumvent or overcome the statutory immunity of Government Code section 844.6.

The Court GRANTS County's motion for judgment on the pleadings without leave to amend.

CONCLUSION

Based on the foregoing, the court rules as follows:

- 1) FINDS that the moving party satisfied the meet and confer requirement.
- 2) GRANTS County's judicial notice request in its entirety.
- 3) GRANTS County's motion for judgment on the pleadings without leave to amend.

Counsel for the moving party is ordered to provide notice.

CHARLOTTE CHO

v.

**ETIWANDA SCHOOL
DISTRICT, et al.**

CIVRS2402030

PROCEDURAL AND FACTUAL BACKGROUND

The Pleadings and Allegations

Plaintiff Charlotte Cho was a student at an elementary school operated by the Etiwanda Unified School District (the District) in October 2023, when she was injured after falling from the monkey bars. The playground was purportedly not safe for use by children of Cho's age (kindergarten students); lacked common safety features; lacked appropriate padding, cushioning, and other materials to protect against foreseeable falls; and was not adequately maintained. Cho was also purportedly not properly supervised. (Compl. at ¶¶ 19-29.)

Based on these allegations, among others, Cho, through her guardian ad litem, commenced suit against the District and Sherry Rizk (a "proctor") in November 2024. The Complaint includes claims for (1) dangerous condition of public property, (2) vicarious liability, (3) negligent

supervision of students, (4) negligence, and (5) negligent hiring, training, supervision, or retention.³

The Motion for Summary Adjudication

The motion and facts presented

Now, through the pending motion, the District and Rizk seek summary judgment, or in the alternative summary adjudication, on the grounds Cho cannot establish the existence of a dangerous condition, the breach of any purported duty, or causation.

The facts presented with the motion reiterate the allegations in the complaint (Fact No.'s 3-16) and then assert, as fact, testimony from Cho as opposed to stating the underlying facts that can be deduced from that testimony (Fact No.'s 20-26, 28-29). (See *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 105 [statement of fact must plainly and concisely set forth all material facts as opposed to asserting various “undisputed facts” in terms not of relevant events but of what a witness has said about the events].) All of the facts are then repeated six times, once per cause of action, providing a total of 282 “facts.”

In any event, the facts otherwise indicate Cho was five at the time of the incident, was attending Calton P. Lightfoot Elementary, and prior to the incident she had not fallen off the playground equipment (called the Verve VI Arch or the Arch) despite having previously used it. (Fact No.'s 17-20.) Cho also never saw anything wrong with the playground or the floor, was never instructed not to climb the equipment, and on the day of the incident there was a playground proctor around two car lengths away. While climbing, Cho reached out for a bar with her left hand, missed, and then fell, ending up in the middle of the equipment on the ground. A proctor (Rizk) came to her right away and helped her to the nurse's office. Cho still uses the playground equipment,

³ While not currently relevant, the City of Rancho Cucamonga and the County of San Bernardino were also named as defendants initially.

nothing has changed since the fall, and Cho has not seen other students fall before. (Fact No.'s 21-29.)

The facts also indicate Arch was designed for children five years and older, though Cho indicates that is the minimum stated age range and the rating does not mean the equipment is safe for the youngest users under all conditions. (Fact No. 30, 37 and 42 and Responses.) Below the Arch were 2' x 2' rubber tiles and the District contracted with Safeplay by Design Inc. (Safeplay) to ensure compliance with California Playground Safety Regulations. Safeplay certified the rubber tiles were compliant with all school safety standards in November 2017. Safeplay also certified the Arch complied with all school safety standards and that it was for ages five and older. (Fact No.'s 31-36.) The District also has no record of prior complaints or concerns about the Arch or rubber tiles at the school, the playground, or playground surface. (Fact No. 36 and 41)

In the opposition, Cho notes that merely because the playground was inspected in 2017 and certified does not mean the conditions were safe at the time of the incident, which was nearly six years later. Cho also again reiterates that the rating does not mean use is safe for the youngest users under all conditions. Furthermore, Cho argues that the District has no records of complaints because no one was inspecting the tiles or testing their adequacy; while site custodians were responsible for visually inspecting the playground equipment and surfaces, no one knew how to assess the impact absorbing quality. Rizk was also never trained in how to inspect the playground. (Response to Fact No.'s 31-36.)

The District also indicates that at the time of the incident there were six trained proctors assigned to and present on the playground for supervision, which included Rizk, who was the closest to Cho at the time of the incident. (Fact No. 38.) The District then contends appropriate

adult supervision was in place consistent with school practice at the time, which includes the multiple proctors, adherence to District oversight. (Fact No. 47.)

However, Cho indicates there were three zones in the “big kid” yard, namely, the basketball court, the playground area, and the handball court. There were normally 2 proctors assigned to the playground area because it was crowded and included kids eating that may need assistance. On the day of the incident, Rizk was alone and supervising 30 kindergarten children, 6-8 of whom were eating. The other proctors were far away and Rizk did not witness the incident because she was assisting a child with opening his food. (Response to Fact No. 38.)

Otherwise, it is undisputed that there were no complaints concerning Rizk’s employment prior to the incident; the school had six kindergarten classes or around 134 kindergarten students on the day of the incident; the District is not aware of any other kindergarten students experiencing falls on the playground; and the equipment is still used at the school. (Fact No.’s 39-40, 43, 46.)

Finally, the District indicates after the incident, the playground was inspected and no defects in the equipment or rubber were found and the rubber was designed for playground use. (Fact No.’s 44-45.) Cho counters by indicating Georgia Wayne, the school principal who provided the declaration underlying the facts asserted, is not qualified to render any opinions regarding the existence of a defect on the playground equipment or surface, she does not remember inspecting the condition of the surface even though part of the investigation protocol should have included inspecting the surface, she did not know of any testing of the integrity of the surface prior to the incident, and afterwards she did not conduct any such testing. (Response to Fact No.’s 44-45.)

The documents presented in connection with the motion and opposition

The motion is supported by a separate statement of fact; the complaint and answer; portions of the transcript from the deposition of Cho; declarations from Michael Higgins (Etiwanda’s

Director of Operations and Facilities), Wayne, and Rizk; photographs of the playground; a purchase order for the “Verve VI Arch” climber and the interlocking rubber tiles; a safety inspection report and certifications from Safeplay by Design, Inc.; an impact attenuation report; a notice of completion; the bell schedule for the 2023-2024 school year; and a roster of employees.

The opposition is supported by an opposing separate statement of fact; portions of the transcript from the depositions of Rizk, Wayne, Higgins, and Sarah Tims; an opposing separate statement of fact; declarations from purported experts Craig Cunningham and Thomas Parco; and objections to the declarations from Higgins, Wayne, and Rizk.⁴

Defendants have replied and submit objections to the declarations from Cunningham and Parco⁵ in addition to a reply separate statement.⁶

DISCUSSION

An Overview of the Law Applicable to Motions for Summary Judgment/Adjudication

⁴ The Court Sustains objection no.’s 1-2 to the Higgins declaration (except overrule as to what Higgins could have personally observed about the conditions as a lay person); sustain objection no.’s 3-4 to the Wayne declaration (except overrule as to what Wayne could have personally observed about the conditions as a lay person and Wayne’s assertion about falls being an inherent risk of age-appropriate playground equipment), but overrule objection no. 5; overrules objection no. 6 to the Rizk declaration (though noting that while the argument is not a true evidentiary objection, the Court can ignore the inconsistent assertions under *Harris v. Thomas Dee Engineering Co., Inc.* (2021) 68 Cal.App.5th 594, 604), but sustains objection no. 7 and sustains objection no.’s 8-10 (except overrules as to what Rizk could have personally observed about the conditions as a lay person).

⁵ Defendants’ objections consist of several objections asserted to several paragraphs, simultaneously, or entire declarations. Evidentiary objections must be specific and particularized. To the extent the material cited as being objectionable contains any statement that is non-objectionable, even if meritorious objections could have been posed to unspecified portions of the material, the objections are overruled. (*OCFCD v. Sunny Crest Dairy, Inc.* (1978) 77 Cal. App. 3d 742, 753; see also *Rose v. State* (1942) 19 Cal. 2d 713, 742 [discussion in context of motion to strike out inadmissible evidence].) As a result, the Court overrules Defendants’ objections to the Cunningham and Parco declarations.

⁶ “There is no provision in [Code of Civil Procedure section 437c] for” a reply to a separate statement in opposition. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.)

Summary judgment is proper where there is no triable issue as to any material fact and the movant is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

The analysis requires the trial court to engage in three steps:

First, we identify the issues framed by the pleadings since it is these allegations to which the motion must respond by establishing a complete defense or otherwise showing there is no factual basis for relief on any theory reasonably contemplated by the opponent's pleading. [Citations.] [¶] Secondly, we determine whether the moving party's showing has established facts which negate the opponent's claim and justify a judgment in movant's favor. [Citations.] The motion must stand self-sufficient and cannot succeed because the opposition is weak. [Citations.] A party cannot succeed without disproving even those claims on which the opponent would have the burden of proof at trial. [Citations.] [¶] When a summary judgment motion prima facie justifies a judgment, the third and final step is to determine whether the opposition demonstrates the existence of a triable, material factual issue." (*AARTS Productions, Inc. v. Crocker Nat'l Bank* (1986) 179 Cal.App.3d 1061, 1064-65.)

When the moving party is a plaintiff, the initial burden is met by a showing that there is no defense to the action or rather by proving each element of the cause or causes of action. (See Code Civ. Proc., § 437c, subd. (p)(1).) Likewise, defendants can meet their initial burden by showing that a cause or causes of action have no merit because one or more elements of the claims "cannot be established." (See Code Civ. Proc., § 437c subd. (p)(2).) Once the movant has met the initial burden, the burden then shifts to the opposing party to produce admissible evidence showing that there is a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at pp. 849-851.) However, if the movant does not satisfy the initial burden, the motion must be denied and it is unnecessary for the court to consider the opposition. (*Swanson v. Morongo Unif. Sch. Dist.* (2014) 232 Cal.App.4th 954, 963.)

The party opposing an MSJ must provide proof showing a triable issue of fact; equivocal evidence will not suffice. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial § 10:203 ("Weil & Brown"), citing *Ahrens v. Sup. Ct. (Pac. Gas & Elec. Co.* (1988) 197 Cal.App.3d 1134, 1152.) Declarations and evidence offered in opposition to a motion for summary judgment must

be liberally construed, while the moving party's evidence must be construed strictly. The opposing party cannot controvert the moving party's declarations by evidence "based on speculation, imagination, guess work, or mere possibilities." (Weil & Brown, *supra*, § 10:203.1, citing *Doe v. Salesian Soc.* (2008) 159 Cal.App.4th 474, 481.) Opposing declarations, while liberally construed, cannot contain inadmissible evidence, either hearsay or conclusions. (*Overland Plumbing, Inc. v. Transamerica Ins. Co.* (1981) 119 Cal.App.3d 476, 483.) Any evidentiary objections not made are deemed waived. The Court, additionally, must consider reasonable inferences drawn from the presented evidence by the parties. (Code Civ. Proc., § 437c, subd. (c); *Aguilar, supra*, 25 Cal.4th at p. 843.)

The opposing party may not rely upon the allegations or denials in its pleadings, but must "set forth the specific facts showing that a triable issue of material fact exists." (Code Civ. Proc., § 437c, subd. (p)(2).) The opposing party's failure to file counter-declarations or opposition does not relieve the moving party of the above burden, *i.e.*, it is still the moving party's burden to prove he is entitled to judgment. (*Villa v. McFerren* (1995) 35 Cal.App.4th 733, 743-45; *FSR Brokerage, Inc. v. Sup. Ct.* (1995) 35 Cal.App.4th 69, 73-75, fn. 4.)

The court's sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.) The judge must determine from the evidence submitted whether there is a triable issue as to *any* material fact. (*Id.* at p. 926.) If there is a single such issue, the motion must be denied. (*Joseph Schlitz Brewing Co. v. Downey Distributor* (1980) 109 Cal.App.3d 908, 914.)

A party may also move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims of damages, or one or more issues of duty. (Code Civ. Proc. §437(f).) A summary adjudication motion may be made by itself, or as

an alternative to a summary judgment motion, and is subject to the same rules and procedures as a summary judgment motion. (*Lomes v. Hartford Financial Service Group, Inc.* (2001) 88 Cal.App.4th 127, 131.)

The First Cause of Action for Dangerous Condition of Public Property

An overview of the applicable law

Government Code section 835, which is the statutory basis for a cause of action for dangerous condition of public property, provides:

“Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

- (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or
- (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Gov. Code, § 835.)

To state a cause of action against a public entity under Government Code section 835, a plaintiff must plead: (1) a dangerous condition existed on the public property at the time of the injury; (2) the condition proximately caused the injury; (3) the condition created a reasonably foreseeable risk of the kind of injury sustained; and (4) the public entity had actual or constructive notice of the dangerous condition of the property in sufficient time to have taken measures to protect against it. (Gov. Code, § 835; *Brenner v. City of El Cajon* (2003) 113 Cal.App.4th 434, 439.)

Government Code section 830 defines a “[d]angerous condition” as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of

injury when such property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” Property is not “dangerous” within the meaning of the statutory scheme if the property is safe when used with due care and the risk of harm is created only when foreseeable users fail to exercise due care. (Gov. Code, § 830.) Even though it is foreseeable that persons may use public property without due care, a public entity may not be held liable for failing to take precautions to protect such persons. (*Fuller v. State of California* (1975) 51 Cal.App.3d 926, 939.)

The existence of a dangerous condition

In this case, the motion suggests that Cho’s *allegations* fail to adequately identify a dangerous condition, but the complaint broadly suggests, among other things, that the playground equipment and surrounding areas were deteriorated. (Compl. at ¶ 43.) The allegations would therefore include the theory now advanced that the rubber flooring had deteriorated and was in a dangerous condition,

Next, Defendants attempt to affirmatively show there was no dangerous condition, citing to the absence of prior complaints, Cho’s own testimony, the ratings and certifications provided when the equipment was installed, as well as the general inspections conducted before and after the incident. However, the ratings and certifications provided when the equipment was installed in 2017 would not be indicative of the conditions existing when the incident occurred in 2023.

The declarants offered by Defendants have also failed to show, beyond defects a lay person could observe, that the playground was truly free from defects. Indeed, Higgins conceded he would have needed to have a “certified person” test the impact attenuation of the rubber, that the ability to absorb energy of the rubber diminishes with age, and that there were no procedures in place between 2017 to the time of the incident to test the adequacy of the surface. (Higgins Dep. at pp. 92-93 and 115.) As a result, Defendants failed to meet their initial burden of showing the absence

of a dangerous condition, even if only failing to foreclose on the possibility that the rubber had deteriorated or failing to address what impact absorption, if any, remained on the rubber tiles at the time of the incident. It is also notable that the year after the incident, the surface was tested and it failed, causing the District to replace the surface. (Additional Fact No. 28.)

The notice of the condition

The public entity's notice of the condition need not be actual; constructive notice of the dangerous condition is enough if it existed for "a sufficient time prior to the injury to have taken measures to protect against the dangerous condition." (Gov. Code § 835.2.) It is well settled that "constructive notice can be shown by the long continued existence of the dangerous or defective condition, and it is a question of fact for the jury to determine whether the condition complained of has existed for a sufficient time to give the public agency constructive notice." (*Erfurt v. State of California* (1983) 141 Cal.App.3d 837, 844–845.) "Admissible evidence for establishing constructive notice is defined by [Government Code section 835.2(b)] as including whether a reasonably adequate inspection system would have informed the public entity, and whether it maintained and operated such an inspection system with due care." (*Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, 317.)

In this case, the Defendants largely ignore the constructive notice theory. (Opening Brief at p. 12 [focusing on actual notice]; Compl. at ¶¶ 45 and 59 [alleging both actual and constructive notice].) Thus, arguably Defendants again failed to meet their initial burden, and as noted above, the evidence indicates the District, through Higgins, was aware that the rubber's ability to absorb energy diminishes with age, and there were no procedures in place to test the adequacy of the surface. Higgins further conceded he would have needed to have a "certified person" test the impact attenuation of the rubber. (Higgins Dep. at pp. 92-93 and 115.)

The principal, Wayne, had also observed that the surface had faded and it may have been “worn” “as anything does,” but there were no procedures in place to test the adequacy of the surface and no one at the school knew how to assess the impact absorbing quality of the rubber. (Additional Fact No.’s 39, 49, and 50-51.)

In the reply, Defendants argue Cho has not established the existence of constructive notice, but at the summary judgment stage it is Defendants’ burden to disprove the theory and they completely ignore the constructive notice allegations. There is also no evidence from Defendants indicating the rubber had not lost its impact attenuation qualities by the time of the incident, that there was insufficient time between that occurrence and the incident to discover the condition, and the District also conceded it had no inspection system in place to test the adequacy of the rubber’s impact attenuation, which is significant because as noted above constructive notice can arise if a reasonably adequate inspection system would have informed the public entity of the condition, and whether it maintained and operated such an inspection system with due care. (*Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, 317.)

The causation element

Finally, as for the causation issue, Defendants fail to explain, let alone produce evidence showing, why the condition of the rubber at the time of the incident was not a substantial factor in causing the incident. If nothing else, it would seem that the condition of the rubber, if it had lost its impact attenuation, could have exacerbated Cho’s injuries. The motion is denied as to the first cause of action.

The Second Cause of Action for Vicarious Liability

An overview of the applicable law

Government Code section 815.2, subdivision (a), provides that a public entity “is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” “To establish a cause of action for negligence, the plaintiff must show that the “defendant had a duty to use due care, that [it] breached that duty, and that the breach was the proximate or legal cause of the resulting injury.” [Citation.] Recovery for negligence depends as a threshold matter on the existence of a legal duty of care.” (*Doe v. Lawndale Elementary School Dist.* (2021) 72 Cal.App.5th 113, 125.) The existence of a duty is a legal question of law (*Ibid.*)

“[A] school district and its employees have a special relationship with the district’s pupils, a relationship arising from the mandatory character of school attendance and the comprehensive control over students exercised by school personnel, ‘analogous in many ways to the relationship between parents and their children.’ ” (*Doe v. Lawndale Elementary School Dist.* (2021) 72 Cal.App.5th 113, 125–126.) Because of that special relationship, school personnel generally have a duty to supervise and protect students, including from “foreseeable injury at the hands of third parties acting negligently or intentionally.” (*Ibid.*)

A defendant’s arguments “about specific measures it has already taken,” such as whether the district’s administrators did enough to prevent harm “concern[] whether defendant in fact took reasonable care, a question of breach usually for the jury.” (*Doe v. Lawndale Elementary School Dist.* (2021) 72 Cal.App.5th 113, 126.) Foreseeability is also generally a question of fact. “Nevertheless, “ “[e]ven if an organization has a special relationship with the tortfeasor or plaintiff, “[t]he court may depart from the general rule of duty ... if other policy considerations clearly require an exception.” “ (*Doe v. Lawndale Elementary School Dist.* (2021) 72 Cal.App.5th 113,

127.) In the school context, the courts consult the *Rowland* factors in determining whether the “relevant policy considerations counsel limiting that duty.” (*Ibid.*)

The *Rowland* factors are “the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant’s conduct and the injury suffered, the moral blame attached to the defendant’s conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved.” (*Doe v. Lawndale Elementary School Dist.* (2021) 72 Cal.App.5th 113, 127 [referencing *Rowland v. Christian* (1968) 69 Cal.2d 108].)

Defendants’ motion

In this case, the second cause of action is based upon the duty owed by Rizk and the “Doe” defendants to monitor, supervise, care for, and look after the children playing on the playground in addition to the oversight of persons inspecting, monitoring, watching over, looking after, and managing school playgrounds to keep them free from dangerous conditions. (Compl. at ¶ 58.)

The motion and the opposition focus on the number of proctors, six for around 134 students, in addition to their location on the playground. The facts also indicate one of the proctors, Rizk, was only two car lengths away from Cho and she (Cho) could see the proctor. Then, following the incident, the proctor came right away. (Fact No.’s 38-39, 47, 70, and 72.) The District therefore argues that appropriate adult supervision was in place on the playground at the time. (Fact No. 47.)

The District’s argument appears reasonable. Requiring the District to employ another adult would impose a significant burden. Moreover, it is unclear how more adult supervision or different

placement of the supervision would have changed anything. For instance, the facts appear to suggest that Cho and other kindergarten children were permitted to use the Arch because it was rated for their age, there were no safety complaints reported or complaints about Rizk, Cho herself had used the Arch in the past without incident as did other kindergarten students, Cho was never instructed not to use the Arch, and the equipment is still in use. (See, e.g., Fact No.'s 37, 40-43, and 46.)

Thus, to the extent the children were permitted to use the Arch, having several more proctors in the general area would not have prevented the fall itself, even if one of those proctors was specifically charged with only observing the Arch, because the incident appears to have happened too fast. (See Fact No. 24 [Cho reached out for a bar with her left hand, missed, then fell].) That is unless Cho suggests that a proctor should have been tasked with assisting students with climbing the Arch and personally providing fall protection to students. It appears Cho makes such a suggestion (Opposition at 17:3-8), but such a duty would again appear unrealistic to impose.

It also does not appear that Cho suggests kindergarten students should have been prevented from using the Arch altogether, that is if the flooring had not degraded; Cho only suggests the District should have closed the Arch since there was only one proctor assigned to the "zone." (Opposition at p. 16.) Again though, it does not appear that an additional proctor would have changed anything absent a proctor specifically charged with fall prevention.

On the other hand, the claim could be based upon the negligence in permitting the children to use the Arch given its dangerous condition. The claim is also based upon negligence in the oversight of the persons inspecting, monitoring, watching over, looking after, and managing school playgrounds to keep them free from dangerous conditions. (Compl. at ¶ 58.) As indicated above, the District, through Higgins, was aware that the rubber's ability to absorb energy diminishes with

age, yet there were no procedures in place between 2017 to the time of the incident to test the adequacy of the surface. Higgins further conceded he would have needed to have a “certified person” test the impact attenuation of the rubber. (Higgins Dep. at pp. 92-93 and 115.)

Wayne also observed that the surface had faded and it may have been “worn” “as anything does,” but there were no procedures in place to test the adequacy of the surface and no one at the school knew how to assess the impact absorbing qualities. (Additional Fact No. 39, 49, and 50-51.) Therefore, if nothing else the second cause of action could be based upon a theory of negligent hiring, training, supervision, or retraining as it relates to the rubber surface and the absence of trainings, the absence of policies and procedures, the absence of a method to test the rubber, the negligence in failing to hire a “certified person” to conduct the test at any time over six years, etc.

The Third Cause of Action for Negligent Supervision of Students, the Fourth Cause of Action for Negligence, and the Fifth Cause of Action for Negligent Hiring, Training, Supervision, or Retention.

The third, fourth, and fifth causes of action appear duplicative, of both each other and the vicarious liability and dangerous condition causes of action. For example, the claims appear broad enough to include a theory that the District and its employee’s were negligent in allowing Cho to play on the dangerous Arch or that the District failed to ensure employees were trained and supervised to, and that it lacked policies and procedures to, determine whether the rubber lost its impact attenuation. (See Compl. at ¶¶ 70, 74, and 74 [third cause of action based on negligent supervision of students, Gov. Code, § 815.2, and the failure to protect against the reasonably foreseeable physical harm]; Compl. at ¶¶ 81, 83, and 88 [fourth cause of action based upon oversight of persons inspecting, monitoring, looking after, and managing playground equipment

to keep them free from dangerous conditions; defendants broadly breached their duty by failing to protect Cho from foreseeable physical harm; and employees were unfit to manage school playgrounds and keep them free from dangerous conditions]; and Compl. at ¶¶ 92 and 95 [fifth cause of action based upon Gov. Code, § 815.2 and Defendants alleged duty to safeguard against dangerous conditions of playground equipment they knew or should have known posed a serious risk of injury].)

However, redundancy is not a ground raised in the notice of motion. While the opening brief attempts to address what could be construed as particular theories within the causes of action, the notice of motion should have been directed at those theories instead of the causes of action as a whole. (See Notice of Motion at pp. 2-3 [broadly indicating each of the claims fail because Cho cannot show breach of duty, causation, actionable injury, or that there was a dangerous condition that contributed to the incident]; *Blue Mountain Enterprises, LLC v. Owen* (2022) 74 Cal.App.5th 537, 549, *as modified* (Jan. 19, 2022) [party may move for summary adjudication that does not completely dispose of a cause of action if the party presents a motion that pertains to one or more “distinct wrongful acts are combined in the same cause of action in a complaint” and the trial court does not abuse its discretion in summarily adjudicating such a motion].)

As a result, the analysis outlined above related to the first two causes of action applies. Defendants failed to show that the property was not in a dangerous condition, that Defendants were not on constructive notice of the condition, and that there were adequate policies and procedures in place or that employees were properly trained and supervised with respect to monitoring the conditions of the rubber or that permitting the use of the Arch under such conditions was not negligent.

On the other hand, the notice of motion also notes that the fourth cause of action has no statutory basis. Indeed, the claim does not reference any statute, not even Government Code section 815.2. That is significant because public entities are generally immune from liability except as otherwise provided by statute (Gov. Code, § 815; *Tansavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639 [tort liability must be based in statute]; *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802 [“Since the duty of a governmental agency can only be created by statute or ‘enactment,’ the statute or ‘enactment’ claimed to establish the duty must at the very least be identified”].)

The Motion as to Rizk

Finally, it is notable that the motion makes no real distinction between Rizk and the District. In fact, it is not even argued that Rizk cannot be liable for the first cause of action for dangerous condition of public property because Government Code section 840.4 (which is not cited by Defendants) outlines different conditions for imposing such liability upon an employee for dangerous conditions.

To the extent Rizk was not part of the installation, not the cause of the degradation of the rubber, or that she lacked the ability to correct the rubber, she would not be liable under the first cause of action, but again that argument is not advanced. Similarly, and presumably, Rizk’s role as a proctor did not include any supervision over other employees and thus she would not be liable for the negligent supervision of those employees, but again no such argument is advanced in the motion. As a result, the motion is denied as to Rizk.

CONCLUSION

Based on the foregoing the Court rules as follows:

- (1) Sustains Cho's evidentiary objection no.'s 1-2 to the Higgins declaration (except overrules as to what Higgins could have personally observed about the conditions as a lay person); sustains objection no.'s 3-4 to the Wayne declaration (except overrule as to what Wayne could have personally observed about the conditions as a lay person and Wayne's assertion about falls being an inherent risk of age-appropriate playground equipment), but overrule objection no. 5; and overrules objection no. 6 to the Rizk declaration (though noting that while the argument is not a true evidentiary objection, the Court ignores the inconsistent assertions in the declaration under *Harris v. Thomas Dee Engineering Co., Inc.* (2021) 68 Cal.App.5th 594, 604), but sustains objection no. 7 and sustain objection no.'s 8-10 to the Rizk declaration (except overrule as to what Rizk could have personally observed about the conditions as a lay person).
- (2) Overrules Defendants' objections to the Cunningham and Parco declarations.
 - a. The objections are too overbroad. (*OCFCD v. Sunny Crest Dairy, Inc.* (1978) 77 Cal. App. 3d 742, 753.)
- (3) Denies the motion for summary judgment.
 - a. For the reasons outlined below. It is also notable that the motion does not really raise any arguments specific to Rizk.
- (4) Grants summary adjudication as to the fourth cause of action for negligence.
 - a. Government tort claims must be based in statute, but the fourth cause of action does not cite any statutory basis for the claim. (See Gov. Code, § 815; *Tansavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639 [tort liability must be based in statute].)
- (5) Denies the motion for summary adjudication as to first cause of action.

- a. The motion attacks the *allegations*, but they are broad enough to include the theory that the rubber on the playground had deteriorated and had lost its impact attenuation. (See, e.g., Compl. at ¶ 43.) Defendants also failed to meet their initial burden on the claim or there is otherwise a triable issue of material fact. Defendants have not disproved that the rubber had lost its impact attenuation at the time of the incident, that the loss had not existed for sufficient time before the incident to impart constructive notice, or that the loss increased the severity of the harm to Cho.
- b. Higgins also conceded he would have needed to have a “certified person” test the impact attenuation, yet he admitted the ability to absorb energy of the rubber diminishes with age and there were no procedures in place between 2017 to the time of the incident to test the adequacy of the surface. (Higgins Dep. at pp. 92-93 and 115.) That is significant because constructive notice can be established by the absence of a reasonably adequate inspection system and the absence of such adequate inspections performed with due care. (*Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, 317.)
- c. It is also notable that the year after the incident, the surface was tested and it failed, causing the District to replace the surface and the material was not saved. (Additional Fact No. 28.) Wayne had also observed that the surface had faded and it may have been “worn” “as anything does,” but there were no procedures in place to test the adequacy of the surface and no one at the school knew how to assess the impact absorbing qualities. (Additional Fact No. 39, 49, and 50-51.)

(6) Denies the motion as to the second cause of action for vicarious liability.

- a. While Defendants have the better position about the duty of care, the adequacy of the supervision, etc., at least in the general sense, the claim is viable when viewed from the perspective that the children and Cho were permitted to play on the playground despite its dangerous condition. If nothing else, the claim is also based upon the alleged negligence in the oversight of the persons inspecting, monitoring, watching over, looking after, and managing the school playgrounds to keep them free from dangerous conditions (Compl. at ¶ 58), a theory the motion largely fails to address and which is corroborated by the Higgins and Wayne testimony.

(7) Denies the motion as to the third and fifth causes of action.

- a. The claims are redundant of the viable claims outlined above (see Compl. at ¶¶ 70 and 74 in addition to ¶¶ 92 and 95), but redundancy is not raised in the motion nor is the motion noticed as being directed at particular theories within the cause of action (see Notice of Motion at pp. 2-3).

Counsel for the moving party is ordered to provide notice.